

**G.O.Rt.No.732, Genl.Admn. (SC.F) Dept., dt.22.02.1989 regarding setting up of
Commissionerate of Inquiries for conducting departmental inquiries. Subject
Heading : Commissionerate of Inquiries - setting up of**

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Read the following :

1. G.O.Rt.No.3134, G.A.(Spl.A) Dept., dt.01.08.86.
2. G.O.Rt.No.867, G.A.(SC.D) Dept., dt.11.03.88

ORDER :

Government have reviewed the existing institutional arrangements in regard to disposal of disciplinary cases against Government Servants under the APCS (CC&A) Rules, 1963, in respect of State Government officers and under the All-India Services (Discipline and Appeal) Rules, 1969 in respect of All-India Service Officers serving in connection with the affairs of the State. Disciplinary cases initiated on the basis of enquiry into misconduct of public servants conducted through the Anti-Corruption Bureau are presently entrusted either to the Tribunal for Disciplinary proceedings or to the Department for entrustment to the Inquiry Officers appointed by the Department. Departments also initiate other disciplinary proceedings against officers for serious administrative lapses. Government have noted with concern the inordinate delay in the matter of disposal of such disciplinary cases entrusted to part-time Departmental Officers and the consequential ineffectiveness of the whole procedure.

2. Government are anxious that disciplinary proceedings entrusted to the Departmental Inquiry Officers are disposed off in accordance with the rules and procedure laid down with promptitude.

3. Accordingly, Government have decided that there shall be a Commissionerate of Inquiries for conducting disciplinary proceedings against Gazetted Officers in respect of misconduct warranting major punishments, other than those referred to the Tribunal for Disciplinary proceedings.

4. Government accordingly constitute a Commissionerate of Inquiries for conduct of disciplinary proceedings against Gazetted Officers of State Government and All-India Service Officers serving in connection with the affairs of the State. For the time being, the Commissionerate shall comprise of Chairman and one Member. Orders appointing the Chairman of the Commissionerate will issue separately from General Administration (Special.A) Department.

5. Detailed instructions and working procedures to be observed in the entrustment of cases by the Departments to the Commissionerate of Inquiries will issue separately.

6. Sri T.Padmanabhan, IAS appointed as Commissioner for Departmental Inquiries in the G.O. 1st read above shall be the Member of the Commissionerate. The cases entrusted to him shall stand transferred to the Commissionerate and shall continue to be dealt with by him as Member of the Commissionerate.

7. The post of the Commissioner of Inquiries held by Sri R.H.Heeraman Singh, Retired District & Sessions Judge, Grade-I, last sanctioned in the G.O.

2nd read above shall stand abolished from 28.02.1989 AN.

8. The disciplinary cases entrusted to Sri V.Sundaresan, IAS (Retired), One Man Commission, will be transferred to the Commissionerate of Inquiries.

9. The existing staff attached to the Commission of Inquiry (Sri R.H.Heeraman Singh) and the Commissioner for Departmental Enquiries (Sri T.Padmanabhan, IAS) will stand transferred to the Commissionerate of Inquiries.